

Amit Kumar v. Dayanand Sharma & 6 Others

High Court of Judicature at Allahabad · Single Judge · 30 November 2023 (final order dismissing the contempt application as infructuous; substantive order of 29.8.2022 stayed on 3.9.2022 and special appeal decided 22.3.2023; earlier orders of 29.7.2022 and 22.8.2022) · 2023:AHC:227012 · Contempt Application (Civil) No. 4248 of 2022 (arising from Writ-C No. 17882 of 2022, decided 29.6.2022) · **Contempt application dismissed as infructuous (order dated 30.11.2023). The applicant, a tenant, had obtained a writ-court order dated 29.6.2022 (Writ-C No. 17882 of 2022) directing the Executive Engineer to grant him an electricity connection on his complying with Clause 4.4 of the U.P. Electricity Supply Code, 2005 and furnishing an indemnity bond; he filed this contempt application alleging that, after he complied and the Executive Engineer passed orders, the landlord (opposite party no.1) and police officials obstructed the lineman from providing the connection. By order dated 29.8.2022 the learned Single Judge, applying the Supreme Court's decision in Dilip (Dead) v. Satish (electricity being a basic amenity, a tenant's connection cannot be declined for want of the landlord's no-objection certificate, the authority examining only whether the applicant is in occupation), and the contempt-jurisdiction principle in Dr. U.N. Bora v. Assam Roller Flour Mills Association, found the landlord and the police prima facie in contempt of the writ-court's order, directed the electricity officials and police to provide the connection within 72 hours, and posted the matter for framing of charges against the landlord. That order was stayed on 3.9.2022 by a Division Bench in Special Appeal Defective No. 395 of 2022, and the special appeal was decided on 22.3.2023 relegating the matter to the Civil Court. As the applicant's grievance stood relegated to the Civil Court, the contempt application was rendered infructuous and was dismissed on 30.11.2023.**

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HEADNOTE

Applying the Supreme Court's ruling that electricity is a basic amenity and that a tenant's connection cannot be refused for want of the landlord's no-objection certificate — the authority examining only whether the applicant is in occupation — a learned Single Judge held (order of 29.8.2022) that a landlord's and the police's obstruction of a connection ordered pursuant to a writ-court direction was prima facie contempt; but that order was stayed on appeal and the contempt application was ultimately dismissed as infructuous once the matter was relegated to the Civil Court. The applicant-tenant had obtained a writ-court order (29.6.2022) directing the Executive Engineer to grant him an electricity connection on compliance with Clause 4.4 of the U.P. Electricity Supply Code, 2005 and furnishing of an indemnity bond. Alleging that the landlord (opposite party no.1) and police officials obstructed the lineman after he complied and the Executive Engineer passed orders, he moved this contempt application. The landlord relied on Dilip (Dead) v. Satish to contend that, as the applicant was not a tenant and no rent agreement existed, no connection could issue. The Single Judge held that Dilip supported the applicant, not the landlord: electricity is a basic amenity, there can be no ground to decline a tenant's connection because the landlord refused a no-objection certificate, and the authority is only to examine whether the applicant is in occupation — which was undisputed — and not any rent agreement or deed. Invoking Dr. U.N. Bora v. Assam Roller Flour Mills Association (a contempt court conducts no roving inquiry and does not decide disputed questions of fact, which go to the appropriate forum), the Court found the landlord's and police's obstruction prima facie contemptuous, directed the connection within 72 hours, and listed the matter for framing of charges. On 3.9.2022 a Division Bench stayed that order in Special Appeal Defective No. 395 of 2022; the special appeal was decided on 22.3.2023 relegating the matter to the Civil Court; and, the grievance having been so relegated, the contempt application was dismissed as infructuous on 30.11.2023.

FACTUAL SUMMARY

The applicant, Amit Kumar, a tenant of the premises in dispute at Noida, Gautam Budh Nagar, had approached the High Court through Writ-C No. 17882 of 2022. By order dated 29.6.2022 the writ court, without venturing into the merits, disposed of the petition directing that, on the applicant's complying with the conditions of Clause 4.4 of the U.P. Electricity Supply Code, 2005 and submitting an indemnity bond, the Executive Engineer, Electricity Urban Distribution Division No.-7, Sector 62-C, Noida, would pass appropriate orders for grant of an electricity connection in the applicant's name. The applicant claimed to have complied with the formalities, and the Executive Engineer passed orders for the connection. According to the electricity officials (opposite party nos. 2, 3 and 4), when the lineman went to provide the connection the landlord (opposite party no.1), with the help of police officials of Sector 24, Noida (opposite party nos. 5 and 6), obstructed him, whereupon this contempt application was filed against the electricity officials, the police officers and the landlord. The landlord contended that Clause 4.4 had not been complied with, that the applicant was not a tenant and no formal rent agreement had been executed, and relied on Dilip (Dead) through LR v. Satish & Others (Criminal Appeal No. 810 of 2022, decided 13.5.2022). The learned Single Judge (Hon'ble Rohit Ranjan Agarwal, J.), by order dated 29.8.2022, held the landlord and the police prima facie in contempt,

directed the connection within 72 hours, and posted the matter for framing of charges. That order was stayed on 3.9.2022 by a Division Bench in Special Appeal Defective No. 395 of 2022; the special appeal was decided on 22.3.2023, relegating the matter to the Civil Court; and on 30.11.2023, no one appearing to press the application and the grievance having been relegated to the Civil Court, the contempt application was dismissed as infructuous.

REUSABLE CONSTRUCTIONS

1. Electricity being a basic amenity, a tenant in occupation cannot be refused an electricity connection on the ground that the landlord has declined a no-objection certificate; the distribution authority is only to examine whether the applicant is in occupation of the premises, and not any rent agreement or rent deed between the landlord and the tenant. **order of 29.8.2022**
2. Where a writ court directs the Executive Engineer to grant a tenant a connection on compliance with Clause 4.4 of the Supply Code and furnishing of an indemnity bond, and the officer passes the order, obstruction of the connection by the landlord or the police is prima facie contempt of the writ court's order. **order of 29.8.2022**
3. Under contempt jurisdiction the court conducts no roving inquiry and does not decide issues not dealt with by the court of first instance; disputed questions of fact must be adjudicated before the appropriate forum, not the contempt court, and where a distinct mechanism is provided a party must exhaust it before invoking contempt. **order of 29.8.2022**
4. Where the substantive contempt direction is stayed on appeal and the special appeal relegates the applicant's grievance to the Civil Court, the contempt application is rendered infructuous and is liable to be dismissed. **order of 30.11.2023**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

RATIO

A tenant in occupation is entitled to a connection under Clause 4.4 on an indemnity bond; on the Supreme Court's Dilip principle the landlord's refusal of a no-objection certificate is no bar, the authority examining only occupation

QUESTION

Can a tenant's application for an electricity connection under Clause 4.4 of the Supply Code be declined because the landlord refuses a no-objection certificate or disputes the tenancy/rent agreement, or is the authority only to examine whether the applicant is in occupation of the premises?

HOLDING

The connection cannot be declined on that ground. Applying the Supreme Court's decision in Dilip (Dead) v. Satish, electricity is a basic amenity and there can be no ground for refusing a tenant's connection because the landlord has refused a no-objection certificate; the electricity authority is only to examine whether the applicant is in occupation of the premises, and not any rent agreement or rent deed. The applicant's occupation being undisputed, and the writ court having directed the connection on compliance with Clause 4.4 and furnishing of an indemnity bond (which the applicant had done, the Executive Engineer having passed the order), the landlord's reliance on the absence of a rent agreement was of no help to him. **order of 29.8.2022**

EVIDENCE “there can be no ground for failure/refusal for declining to provide electricity connection to a tenant on no objection certificate having been refused by the landlord” **order of 29.8.2022**

EVIDENCE “the only condition is that the applicant must be in occupation of premises in question” **order of 29.8.2022**

FLAG Stated in the contempt order of 29.8.2022, which was stayed on 3.9.2022 by a Division Bench (Special Appeal Defective No. 395 of 2022); the special appeal (22.3.2023) relegated the matter to the Civil Court and the contempt application was dismissed as infructuous on 30.11.2023. The Dilip decision was cited by the landlord (opposite party no.1) but applied against him.

INTERPLAY · OFFTOPIC::contempt-civil

RATIO

In contempt jurisdiction the court conducts no roving inquiry, decides no issue not dealt with by the court of first instance, and remits disputed questions of fact to the appropriate forum

QUESTION

In deciding a civil contempt of a writ-court order directing a tenant's electricity connection, can the contempt court adjudicate the landlord's disputed contentions about the tenancy and the rent agreement?

HOLDING

No. Applying *Dr. U.N. Bora v. Assam Roller Flour Mills Association*, in contempt jurisdiction the court is not expected to conduct a roving inquiry or to go beyond the very judgment allegedly violated; disputed questions of fact can only be adjudicated before the appropriate forum and not before the contempt court, and where a distinct mechanism is provided a party must exhaust it before invoking contempt. The landlord's disputed plea that the applicant was not a tenant could therefore not be gone into; the applicant's occupation being undisputed and the connection having been ordered, the obstruction was prima facie contempt of the writ court's order. [order of 29.8.2022](#)

EVIDENCE “While dealing with a contempt petition, the Court is not expected to conduct a roving inquiry and go beyond the very judgment which was allegedly violated” [order of 29.8.2022](#)

EVIDENCE “Disputed question of fact can only be adjudicated before the appropriate forum and not before the contempt Court” [order of 29.8.2022](#)

FLAG The same order of 29.8.2022 was stayed and the matter ultimately relegated to the Civil Court; the disputed-questions-of-fact principle foreshadowed that relegation, on which the contempt application was dismissed as infructuous on 30.11.2023.

PRINCIPLE TAGS

landlord-noc-refusal-in-dispute-no-bar-to-tenant-connection The landlord's refusal of a no-objection certificate and his dispute of the tenancy were held no bar to the tenant's connection; on Dilip, electricity is a basic amenity and only the applicant's occupation is to be examined. Lead authorities: *Dilip (Dead) through LR v. Satish & Others*. [order of 29.8.2022](#)

contempt-jurisdiction-no-roving-inquiry-disputed-facts-to-appropriate-forum Applying *Dr. U.N. Bora*, the contempt court would conduct no roving inquiry into the disputed tenancy question; disputed questions of fact belong to the appropriate forum — here, ultimately, the Civil Court to which the matter was relegated. Lead authorities: *Dr. U.N. Bora v. Assam Roller Flour Mills Association*. [order of 29.8.2022](#)

contempt-application-infructuous-on-relegation-to-civil-court Once the substantive contempt direction of 29.8.2022 was stayed on appeal and the special appeal (22.3.2023) relegated the applicant's grievance to the Civil Court, the contempt application was rendered infructuous and dismissed. [order of 30.11.2023](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE APPLICANT WAS IN LAW A TENANT AND WHETHER ANY RENT AGREEMENT EXISTED BETWEEN HIM AND THE LANDLORD

Held to be a disputed question of fact not to be gone into in contempt jurisdiction, the applicant's occupation alone being undisputed and sufficient for the connection; ultimately relegated to the Civil Court. [order of 29.8.2022](#)

NOT DECIDED — FRAMING OF CHARGES AGAINST THE LANDLORD (OPPOSITE PARTY NO.1) FOR OBSTRUCTING COMPLIANCE WITH THE WRIT-COURT'S ORDER

Listed for consideration on 6.9.2022 but not taken up, the substantive order having been stayed on 3.9.2022; the contempt application was later dismissed as infructuous. [order of 6.9.2022](#)

RELATED CASES — SEE ALSO

SCJ-2216 — Recent companion holding that a landlord's disputed refusal of a no-objection certificate is no bar to a tenant's connection — the same Dilip basic-amenity principle applied here.

SCJ-272 — Tenant-connection sibling on the landlord's NOC refusal being no bar where occupation is shown.

SCJ-210 — Landlord's consent not required for a tenant's connection (Section 43) — cognate to the occupation-only test applied here.

SCJ-2215 — OFFTOPIC civil-contempt sibling in an electricity-connection context — contempt jurisdiction and its limits.

SCJ-016 — Clause 4.4 connection sibling holding that a connection is not to turn on a landlord-tenant dispute.

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Dilip (Dead) through LR v. Satish & Others</i> Criminal Appeal No. 810 of 2022 (SC), decided	Electricity is a basic amenity of which a person cannot be deprived; a tenant's electricity connection cannot be declined on the ground	Applied order of 29.8.2022	Respondent	Applied

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
13.05.2022 Supreme Court of India	of a no-objection certificate, and the supply authority is only to examine whether the applicant is in occupation of the premises in question.			
<i>Dr. U.N. Bora, Ex. Chief Executive Officer v. Assam Roller Flour Mills Association</i> 2022 (1) SCC 101 Supreme Court of India	Under contempt jurisdiction the court is not expected to conduct a roving inquiry or go beyond the judgment allegedly violated; willful disobedience is the touchstone; disputed questions of fact can only be adjudicated before the appropriate forum, and where a distinct mechanism is provided a party must exhaust it before invoking contempt.	Relied on order of 29.8.2022	Court	Relied on

SCJ-2222 · Amit Kumar v. Dayanand Sharma & 6 Others · 2023:AHC:227012 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.